

PCU329412 Gomez, Jose vs. SUTTON NATIONAL INSURANCE COMPANY

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-08-04

Motion: Defendant's Motions to Compel Initial Responses to (1) Form Interrogatories, Set One, (2) Form Interrogatories, Set Two, (3) Special Interrogatories, Set One and (4) Requests for Production of Documents, Set One; (5) Defendant's Motion to Deem Admissions Admitted; Sanctions

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Re: Gomez, Jose vs. SUTTON NATIONAL INSURANCE COMPANY

Case No.: PCU329412 (consolidated with PCU331343)

Date: August 4, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant's Motions to Compel Initial Responses to (1) Form Interrogatories, Set One, (2) Form Interrogatories, Set Two, (3) Special Interrogatories, Set One and (4) Requests for Production of Documents, Set One; (5) Defendant's Motion to Deem Admissions Admitted; Sanctions

Tentative Ruling: (1) through (4): To grant the motions and order responses due no later than within thirty (30) days after service of the notice of this ruling for these motions; (5) To grant the motion and deem Nos. 1 through 26 admitted; to issue sanctions against Plaintiff and counsel of record, jointly and severally, in the amount of \$1,425, due no later within thirty (30) days after service of the notice of this ruling; to order Defendant to give notice.

Facts Common to (1) through (5)

This insurance breach of contract and bad faith claim involves a dispute between Plaintiff and his homeowners' insurer, Defendant Sutton, regarding coverage for alleged water damage to Plaintiff's residence.

On April 3, 2026, Defendant, via counsel, served (1) Form Interrogatories, Set One, (2) Form Interrogatories, Set Two, (3) Special Interrogatories, Set One, (4) Requests for Production of Documents, Set One and (5) Requests for Admissions, Set One, on Plaintiff.

Responses were due on or before May 5, 2026.

No such responses were received by that date.

Defendant voluntarily extended the time to respond without objections to May 22, 2026. However, no responses were received and these motions followed.

Defendant seeks to compel initial responses to (1) Form Interrogatories, Set One, (2) Form Interrogatories, Set Two, (3) Special Interrogatories, Set One, (4) Requests for Production of Documents, Set One, and to deem admissions admitted as to (5) Requests for Admissions, Set One.

Further, Defendant seeks sanctions in the amount of \$735 per each motion, consisting of 3 hours at the rate of \$225 per hour plus a \$60 filing fee.

No opposition to the motions appear to have been filed.

Authority and Analysis

(1), (2) and (3) Interrogatories

Based on Plaintiff's failure to respond to the first set of form interrogatories, second set of form interrogatories and first set of special interrogatories, the Court orders under, Code of Civil Procedure section 2030.290(a), that Plaintiff provide full and complete verified responses without objection to Defendant's first set of form interrogatories, second set of form interrogatories and first set of special interrogatories, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

(4) Requests for Production

Based on Plaintiff's failure to respond to the first set requests for production of documents, the Court orders under, Code of Civil Procedure section 2031.300(a) that Plaintiff provide full and complete verified responses without objection to Defendant's first set of requests for production of documents, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

(5) Requests for Admissions

Code of Civil Procedure section 2033.280 states that if a party to whom requests for admissions have been directed fails to serve a timely response, the propounding party may move for an order that the truth of any facts specified in the requests for admissions be deemed admitted.

Here, Plaintiff has failed to serve a timely response and Defendant has moved for an order to deem the admission admitted.

Based on the foregoing, the Court grants Defendant's motion. The facts and allegations alleged in Requests for Admissions 1 through 26 of Defendant's First Set of Requests for Admission shall be deemed admitted.

Sanctions

Under Code of Civil Procedure sections 2033.280(c) (Admissions), 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), the Court imposes sanctions as requested by Defendant in the total amount of \$1,425 consisting of one (1)

hour for each of the five (5) motions plus a \$60 filing fee as to each motion, at the \$225 rate.

Sanctions are imposed against Plaintiff and counsel of record, jointly and severally and are due within thirty (30) days after service of the notice of these rulings on these motions. Defendant shall give notice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.